

Court No. - 21

Case :- WRIT - C No. - 3505 of 2023

Petitioner :- Ram Singh Yadav

Respondent :- Chairman Up Power Corporation Ltd. Shakti Bhawan Lucknow And 2 Others

Counsel for Petitioner :- Manoj Kumar Yadav

Counsel for Respondent :- Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Counsel for the respondent Electricity Department prays for and is granted two weeks' time to obtain instructions.

List as fresh on 17.02.2023.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has challenged the assessment notice dated 5.1.2021 and consequential orders passed by respondent no. 3 for recovery of electricity dues in a case of theft of electricity.

Sri Nitesh Patel, holding brief of Sri Udit Chandra, learned counsel for the respondent nos. 2 and 3, states that the impugned recovery has been withdrawn and that fresh order will be passed after affording opportunity of hearing to the petitioner. A short counter affidavit to the same effect has also been filed.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.2.2023

Jaideep/-